

MEMORANDUM FOR FILE

FROM: [REDACTED]
CODE: [REDACTED]
TO: Code 02
DATE: 03/09/2026
SUBJECT: Non-Competitive Procurement Justification Memo for Actions Under SAT

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. FAR 8.405-6 allows for limiting sources for orders or BPAs under Federal Supply Schedules under certain circumstances or for items peculiar to one manufacturer
3. As required by FAR 13.106-3(b)(3)(i), FAR 8.405-6(a)(1), or FAR 8.405-6(b)(2), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE (Include manufacture/sole source name and address.)

This purchase is for the annual renewal of our current HU4A8AC - HPE Tech Care Essential maintenance package that covers 7 HPE SimpliVity nodes.

Manufacturer: Hewlett Packard Enterprise
Address: 12010 Sunset Hills Rd, Reston, VA 20190
Phone: (888) 342-2156
POC: Glenn Hagan

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☒ **A. BRAND NAME.** The item required must be a brand name product, or feature of a product, particular to one manufacturer.

The HPE SimpliVity and compute nodes are mission-critical to the operation of our NSWCCD RDT&E network. To guarantee optimal performance and immediate access to repair services, a comprehensive HPE maintenance contract is required. This contract provides a full suite of support, encompassing both hardware and critical proprietary software such as Arbiter, which ensures failover capabilities and data integrity, and HPE OmniStack, the core of the SimpliVity platform. No alternative support solution can adequately meet these requirements provided by HPE SimpliVity.

☒ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

HPE HPE SimpliVity Support Maintenance can only be purchased from the OEM or their authorized resellers. HPE OmniStack and Arbiter are two proprietary programs required to run on the SimpliVity device and only HPE (and their authorized resellers) are authorized to work on these programs.

☐ **B. SOLE SOURCE.** (select all that apply)

☐ **1. Restrictive Rights.** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

☐ **3. Other Reasons.**

☐ **4. Federal Supply Schedules (FSS): IAW FAR 8.405-6(a)(1)**

☐ a. An urgent and compelling need exists, and following the procedures would result in unacceptable delays;

☐ b. Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; or

☐ c. In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

IV. CERTIFICATIONS & APPROVALS

A. Technical/Requirements Certification: I certify that the facts and representation under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

Customer/Requestor Signature

Name / Title / Phone

Date

B. Certification/Approval: Upon the basis of the above justification and authority, I hereby approve the solicitation of the proposed procurement(s) described herein from a sole source or limited sources,.



Digitally signed by SIEBEKING-
KNOX.MICHELLE.RENEE.1025111016
Date: 2026.03.17 10:25:08 -04'00'

Contracting Officer Signature

Name / Title / Phone

Date